

25STCP02057 25STCP02057

County: los-angeles
Division: Civil Law and Motion
Department: 415
Hearing date: 2026-07-10
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Case Number: 25STCP02057 Hearing Date: July 10, 2026 Dept: 415

TENTATIVE RULING

DEPARTMENT

415

HEARING DATE

June 10, 2026

CASE NUMBER

25STCP02057

MOTION

Petition to Confirm Arbitration Award

MOVING PARTY

Petitioner Forward
Financing LLC

OPPOSING PARTY

None

MOTION

Petitioner

Forward Financing LLC ("Petitioner") petitions the Court to confirm an arbitration award Petitioner obtained against Respondents the Suhan Family Corp. and Esteban Suhun ("Respondents").

In its February

25, 2026 order, at petitioner's request, the Court continued the matter to March

26, 2026, as Petitioner had not filed a notice of hearing, as required. (See Code Civ. Proc., § 1290.2.) Petitioner then gave notice of the March 26,

2026 hearing on March 2, 2026 by mail. But

that was not sufficient notice. (See Code

Civ. Proc., § 1005, subd. (b) [when served by mail, the required notice is 16 court

days and an additional five calendar days].) Accordingly, for due process purposes, the Court

continued the matter once more to this date for Petitioner to give proper notice

to Respondent. Petitioner failed to do

so.

Accordingly, the

petition is denied without prejudice as procedurally defective.

The Court sets an order to show cause hearing

on August 5, 2026 at 8:30 a.m. concerning why the Court should not impose

sanctions pursuant to Code of Civil Procedure section 177.5 against

Petitioner's counsel, Adam Brumage of the Moore Law Group, for failure to

comply with this Court's February 25 and March 26, 2026 orders. Petitioner's counsel may file a response to

the OSC regarding sanctions no later than five court days prior to the scheduled

hearing.

Petitioner is ordered to provide notice of the

Court's ruling and to file proof of service of same.